

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201704367	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/25/2017 7:18 PM	Location of Incident: 317 Bushwick Avenue	18 Mo. SOL 11/25/2018	Precinct: 90		
Date/Time CV Reported Fri, 06/02/2017 12:24 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/02/2017 12:24 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Christophe Schilling	06516	926084	NARCBBN
2. SGT Michael Weber	04578	929343	NARCBBN
3. DT3 Hugo Ortega	03534	935438	NARCBBN
4. DT3 Ylka Morales	05340	914384	NARCBBN
5. DT3 Gabriel Nacelewicz	06511	942255	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Ylka Morales	Abuse: Detective Ylka Morales stopped § 87(2)(b)	A . Exonerated
B . DT3 Christophe Schilling	Abuse: Detective Christopher Schilling refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . DT3 Hugo Ortega	Abuse: Detective Hugo Ortega refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . DT3 Gabriel Nacelewicz	Abuse: Detective Gabriel Nacelewicz refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated
E . SGT Michael Weber	Abuse: Sergeant § 87(2)(b) Weber authorized the arrest of § 87(2)(b)	E . Substantiated

Case Summary

On May 25, 2017, at 7:28 PM, § 87(2)(b) was stopped at 317 Bushwick Avenue in Brooklyn by Det. Christopher Schilling, Det. Hugo Ortega, and Det. Gabriel Nacelewicz (of Brooklyn North Narcotics) and detained as a suspect § 87(2)(e). **(Allegation A)** The officers allegedly refused to provide their shield numbers when asked. **(Allegations B, C, D)** After other team members apprehended § 87(2)(b) an alleged co-conspirator, § 87(2)(b) was arrested and removed to the 90th Precinct stationhouse, on the verifying authority of supervisor Sgt. Michael Weber. **(Allegation E)** § 87(2)(b) was released the following day after the charge against him, § 87(2)(a) 160.50 was dropped as a declined prosecution. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There is some video footage documenting the incident. § 87(2)(g).

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Notice of Claim results are pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has not filed any prior CCRB complaints.
- Sgt. Michael Weber has been a member of service for 16 years: he has been a subject in 14 cases, on 23 allegations, none of which were substantiated; § 87(2)(g)
- Det. Christopher Schilling has been a member of service for 17 years: he has been a subject in 17 cases, on 39 allegations, none of which were substantiated; § 87(2)(g)
- Det. Ylka Morales has been a member of service for 24 years: she has been a subject in 13 cases, on 25 allegations, one of which was substantiated (#201011553, Frisk, CCRB/NYPD Disposition: Instructions); § 87(2)(g)
- Det. Hugo Ortega has been a member of service for 13 years: he has been a subject in 9 cases, on 20 allegations, none of which were substantiated; § 87(2)(g)
- Det. Gabriel Nacelewicz has been a member of service for 11 years: he has been a subject in 9 cases, on 13 allegations, one of which was substantiated (#201212831 – Premises Entered/Searched, CCRB Disposition: Charges, NYPD Disposition: Unknown); § 87(2)(g)

Findings and Recommendations

Officer Identification

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Allegation A: Detective Ylka Morales stopped § 87(2)(b)

Allegation E: Sergeant Michael Weber unlawfully arrested § 87(2)(b)

On May 25, 2017, at 7:18 pm, § 87(2)(b) was arrested on the charge of § 87(2)(b).
§ 87(2)(g)



Fig. 1: Humboldt & Moore Streets

§ 87(2)(b) testified that he was not involved in any drug-related activity during the time period in question. Between 5:00 pm and the time of his arrest, § 87(2)(b) was in the general vicinity of Humboldt Street and Moore Street, wearing a blue Braves jacket. He was unclear about exactly what he was doing there, beyond stating: that he was “walking around” for some time; that he visited a liquor store on Moore Street; and that he then briefly entered a nearby grocer on Humboldt Street to buy lottery tickets, before exiting because it was crowded. § 87(2)(b) then walked to the corner of Bushwick Avenue and McKibbin Street, about two blocks away, to buy tickets at the deli there. § 87(2)(b) was alone for the entirety of this time and denied interacting with anyone on the street. Soon after entering the deli, § 87(2)(b) was suddenly grabbed from behind, handcuffed, and removed outside by a Hispanic officer, identified by the investigation as Det. Ortega. § 87(2)(b) was placed into the rear of a black van by another officer, identified by the investigation as Det. Schilling, who advised that he was being arrested for selling drugs. Before removing him to the stationhouse, the van picked up another

individual – someone he only knew as § 87(2)(b) a neighborhood man he was vaguely acquainted with. § 87(2)(b) did not know why § 87(2)(b) had been arrested and had not seen him at any point that day. § 87(2)(b) was never questioned by officers at the scene or at the stationhouse. (BR01)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f) Det. Schilling was the arresting officer and Sgt. Weber was the supervisor on scene. The seven members of the team were at various positions in the vicinity of Humboldt Street and Moore Street, a high-crime area that had seen a recent shooting. § 87(2)(e), § 87(2)(f)

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§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(a) 160.50

The command log shows that § 87(2)(b) was lodged at the 90th Precinct stationhouse at 7:40 pm and removed to Brooklyn Central Booking at 11:25 pm. (BR 20) § 87(2)(e), § 87(2)(a) 160.50



2017-09-08_11-53-52.mp4

Fig. 3: § 87(2)(b) Arrest

Surveillance cameras (embedded above) at 317 Bushwick Avenue recorded § 87(2)(b)'s arrest at 7:18 pm. (BR11) The video shows § 87(2)(b) being apprehended and handcuffed by Det. Ortega, jointly searched by Det. Ortega and Det. Schilling, and then placed into a black prisoner van at 7:21 pm. The officers leave the scene at 7:23 pm. The investigation also obtained video surveillance footage from variously angled cameras at Humboldt and Moore Streets, none of which were directed at the south-western corner of the intersection – the alleged buy location – and none of which documented the suspects' prior movements. However, a Moore Street camera shows § 87(2)(b) as follows: at 6:13 pm, § 87(2)(b) (carrying a bright blue jacket) crosses from one side of the street to the other and appears to enter a store off-camera; at 6:18 pm, he exits and walks west past the camera; at 6:42 pm, he returns to the store in the same manner, exiting at 6:44 pm as he did before. (BR12-BR13) The cameras show only two instances of possibly relevant police activity: at 6:46 pm, an unmarked vehicle with two uniformed officers suddenly pulls up against traffic on Moore Street – the officers exit, briefly approach and question two unidentified black males, and then release them and leave; at 6:55 pm, a black van resembling the one at § 87(2)(b)'s arrest pulls up to the intersection of Humboldt and Moore Streets for a few moments; no occupant activity is visible. (BR13-BR14)

At her CCRB interview, Det. Morales testified that she observed the following sequence of events: § 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

Det.

Morales confirmed that § 87(2)(b)'s connection to the transaction consisted of the documented statement ("I ain't trying to get locked up...") and his movement into the corner deli with § 87(2)(b) and the unapprehended other. Det. Morales believed that § 87(2)(b)'s statement and association with § 87(2)(b) were sufficient to establish that he was somehow involved in "serving" the middleman. (BR02, BR07)

As the arresting officer, Det. Schilling responded to 317 Bushwick Avenue and handcuffed § 87(2)(b) with the intent to arrest him for involvement in the transaction. A search of § 87(2)(b)'s person did not yield any contraband. Det. Schilling had no independent knowledge of the preceding events – he acted on Det. Morales' identification and information. § 87(2)(e), § 87(2)(f)

Det.

Schilling noted that Sgt. Weber was the final verifying authority on the arrest. He did not recall whether Sgt. Weber responded to 317 Bushwick Avenue, but did confer with him at 111 Moore Street, where § 87(2)(b) was arrested soon after § 87(2)(b). Det. Schilling stated that there was sufficient probable cause to arrest § 87(2)(b) because "he was acting with § 87(2)(b) through verbal communication." § 87(2)(e), § 87(2)(f)

The next day, Det. Schilling described the arrest to an Assistant District Attorney, but had no further involvement in § 87(2)(b)'s case. Det. Schilling could not elaborate on how the unapprehended other evaded the team. (BR03)

Sgt. Weber had a very limited recollection of the incident and did not recall whether he responded to 317 Bushwick Avenue for § 87(2)(b)'s arrest. Sgt. Weber had no independent knowledge of the transaction but confirmed that he was the team supervisor and verifying authority on both arrests that day. § 87(2)(e), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Sgt. Weber did not recall what Det. Schilling told him regarding either § 87(2)(b) or § 87(2)(b). Sgt. Weber did not recall what steps he took at either scene to further assess cause for arrest. Sgt. Weber went to the 90th Precinct stationhouse after the arrests and oversaw arrest processing but did not recall any further involvement in the case. Sgt. Weber did not know the circumstances under which the unapprehended other evaded the team. (BR04)

None of the interviewed officers had any knowledge of the circumstances surrounding § 87(2)(b)'s arrest and were not aware of any coordination or assistance from uniformed personnel. None of the officers were able to clarify how the unapprehended other evaded arrest. (BR02-BR06)

To effect a temporary investigatory detention, officers must have a reasonable suspicion that the individual has committed, is committing, or is about to commit a crime. (People v De Bour, 40 NY2d 210 [1976]; BR21) “Probable cause exists when an officer has knowledge of facts and circumstances sufficient to support a reasonable belief that an offense has been or is being committed.” Under “the fellow officer rule, an arresting officer is deemed to act with probable cause when acting at the direction of another law enforcement officer *who has the requisite probable cause*.” (People v Maldonado, 86 NY2d 631 [1995], italics added; BR22) In suspected hand-to-hand drug transactions, various factors – in addition to the actual or attempted passing of suspicious packaging – can provide probable cause to arrest: currency exchange, furtive movement accompanied by flight, or other “tell-tale” signs of drug-related activity. (People v King, 200 AD2d 487 [1st Dept 1994]; BR23)

However, one’s “mere presence at a narcotics transaction” does not constitute probable cause, absent evidence of “overt criminal activity.” (People v Martin, 32 NY2d 123 [1973], citing United States v Di Re, 332 US 581 [1948]; BR24, BR25) “An allegation that a defendant “acting in concert” with others committed certain acts clearly does not establish probable cause. No Magistrate would issue a warrant on such an allegation without requiring sworn testimony concerning what the accused actually did. A conclusion that defendant acted in concert might well be nothing more than that defendant was present and the arresting officer concluded that he or she was somehow involved. [...] As a matter of constitutional law, it is clear [an individual] cannot be held in custody in the absence of probable cause.” (People v Torres, 141 Misc 2d 19 [Crim Ct, Bronx County 1988]; BR26)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] it is recommended that **Allegation A** be closed as **Exonerated** and **Allegation E** be closed as **Substantiated**.

Allegation B: Detective Christopher Schilling refused to provide his shield number to

§ 87(2)(b)

Allegation C: Detective Hugo Ortega refused to provide his shield number to § 87(2)(b)

Allegation D: Detective Gabriel Nacelewicz refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that the three plainclothes males who escorted him into the prisoner van – Hispanic, bald-white, and tall-blond – refused to provide their shield numbers when asked. (BR01)

Det. Ortega, Det. Schilling, and Det. Nacelewicz acknowledged putting § 87(2)(b) inside the van but stated that he never asked for shield numbers. (BR03, BR05-BR06)

The video footage does not show any relevant interactions. (BR11)

§ 87(2)(g)

[REDACTED] It is therefore recommended that **Allegations B, C, and D** be closed as **Unsubstantiated**.

Squad: 08

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date